

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

INTERNATIONAL LONGSHOREMEN’S ASSOCIATION,	§	
	§	
	§	
Complainant,	§	
	§	
v.	§	FMC Docket No. 22-12
	§	
GATEWAY TERMINALS, LLC;	§	
CHARLESTON STEVEDORING COMPANY, LLC;	§	
PORTS AMERICA FLORIDA, INC.;	§	
CERES MARINE TERMINALS, INC.; and	§	
SSA ATLANTIC, LLC,	§	
	§	
Respondents.	§	

RESPONDENTS’ MOTION FOR LEAVE TO SUPPLEMENT RECORD

Pursuant to 46 C.F.R. §502.69, Respondents Gateway Terminals, LLC (“Gateway”), Charleston Stevedoring Company, LLC (“CSC”), Ports America Florida, Inc. (“PAF”), Ceres Marine Terminals, Inc. (“Ceres”), and SSA Atlantic, LLC (“SSA”) (collectively “Respondents”) hereby move for leave to supplement the record in this proceeding with the submission of one declaration provided by the South Carolina Port Authority (“SCPA”), a non-party with first-hand knowledge of key factual matters currently at issue in this phase of the proceeding.

Complainant International Longshoremen’s Association (“ILA”) filed its opening brief on the issue of jurisdiction on May 15, 2023, with supporting evidence and declarations. Respondents filed their opposition brief, with evidence and declarations on June 5, 2023. ILA’s response to Respondents’ opposition is currently due on June 20, 2023 (due to the Juneteenth holiday on June 19, 2023).

The grounds for this motion are as follows:

1. On Saturday June 10, 2023, non-party SCPA, an instrumentality of the State of South Carolina, provided the enclosed Declaration of Joel P. Britt (“Britt Declaration,” attached hereto as Exhibit A) to the undersigned. The Britt Declaration does not represent a new legal argument or theory, but is factual information that bears on arguments made in Respondents’ reply brief and the accuracy and credibility of the factual information presented by the ILA.

2. Respondents’ opposition brief and supporting declarations attached thereto contend that a number of significant factual representations set out by the ILA relevant to the issue of jurisdiction of the Commission over this matter are materially inaccurate. The proposed supplement to the record in the form of the Britt Declaration provides valuable clarifications regarding disputed issues of fact in this stage of the proceeding.

3. The proposed Britt Declaration is only ten pages in length, and makes its points in a straightforward and efficient manner, without any undue burden to the ILA or the Presiding Officer.

4. SCPA representatives explained to the undersigned that the port was not to prepare a declaration earlier due in part to the resource demands of ongoing complex litigation in recent weeks, particularly the proceedings in the United States Court of Appeals for the Fourth Circuit in *South Carolina State Ports Authority v. NLRB*, 4th Cir. No. 23-1059 (the case that was cited by the ILA as the basis for its May 10, 2023 Consent Motion to Extend the Time Period for Discovery and to File Briefs on Jurisdictional Issues).

5. The proposed Britt Declaration is submitted well before Complainant’s deadline for its reply, and thus affords the ILA the opportunity to respond.

Respondents have conferred with Complainant regarding this request to supplement the record. Complainant indicated that it will consent to this request, provided that Complainant is afforded one week of additional time (to June 27, 2023) to prepare its responsive brief. Respondents have no objection to providing the ILA this additional week for its submission.

Respondents have included the supplemental material as an attachment to this motion, and respectfully request the attached Britt Declaration be made part of the record in this proceeding.

Respectfully submitted,



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FLORIDA, INC.; CERES
MARINE TERMINALS, INC.;
and SSA ATLANTIC, LLC**

CERTIFICATE OF SERVICE

I hereby certify that the foregoing pleading was provided to Complainant's counsel of record by email on this 13th day of June 2023.

Matthew J. Thomas

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INTERNATIONAL LONGSHOREMAN'S
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CSC TERMINALS, LLC;
CHARLESTON STEVEDORING COMPANY,
LLC; PORTS AMERICA FLORIDA, INC.;
CERES MARINE TERMINALS, INC.;
AND SSA ATLANTIC, LLC,

Respondents.

FMC Docket No.: 22-12

DECLARATION OF JOEL P. BRITT

I, Joel P. Britt, hereby declare as follows:

1. I am the Vice President of Terminal Operations ("VPTO") for South Carolina State Ports Authority, an instrumentality of the State of South Carolina ("SCPA"). In this capacity, I am responsible for, and have oversight of, terminal operations for SCPA. This includes responsibility for Hugh K. Leatherman Terminal ("HLT"), the North Charleston Terminal ("NCT"), the Wando Welch Terminal ("WWT"), the Columbus Street Terminal ("CST"), and the Cruise Terminal ("UPT") (collectively, the "Terminals").

2. I have reviewed the Declarations of Messrs. Brave and McLaughlin in the above-captioned case and provide my observations on the statements in those Declarations.

Observations on Declaration of Mr. Brave

3. I have the following observations on the Declaration of Mr. Brave:

a. With respect to paragraph 2, the three referenced SCPA cargo shipping terminals at the Port of Charleston ("Port") are container terminals. SCPA's

other cargo shipping terminal at the Port is CST, which is a breakbulk/roll-on-roll-off (“ro-ro”) terminal.

- b. With respect to paragraph 5, at the Port, the stevedores employ ILA Local 1422-represented labor. SCPA is the owner and the sole marine terminal operator at the Port. SCPA does not employ any ILA Local 1422-represented labor.
- c. With respect to paragraph 8, each of the corporations referenced worked separately at the Port in their sole role as stevedores at the Port, not as marine terminal operators at the Port. CSC handles containerized cargo at the Port in its role as stevedore at the Port, not as a marine terminal operator at the Port.
- d. With respect to paragraph 9, SSA and Ports America perform stevedore services at the Port. Breakbulk and ro-ro stevedore services are performed at CST, in addition to other locations.
- e. With respect to paragraph 10, Ports America, SSA, and Ceres do not perform as marine terminal operators at the Port. They are stevedores at the Port. CSC currently provides, and continues to provide, stevedoring services at the Port. SCPA is the owner and sole marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- f. With respect to paragraph 11, the warehouse referenced is not located on any of SCPA’s Terminals.

- g. With respect to paragraph 12, Ceres, as a stevedore at the Port, provides stevedore services to cruise ships that call and depart from the Port. SCPA is solely responsible for the operation of SCPA's cruise terminal, UPT.
- h. With respect to paragraph 13, Ports America loads and unloads cars and other automobiles to and from ocean vessels and the point of rest at CST. SCPA has licensed to Ports of America space at CST where Ports of America stores certain equipment. The space is not used to store vehicles that are shipped through CST.
- i. With respect to paragraph 14, SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- j. With respect to paragraph 16, this paragraph appears to only refer to container gangs and lashing gangs used at the Port. There are also ro-ro gangs used at the Port. Ro-ro gangs are different from container gangs and lashing gangs.
- k. With respect to paragraph 20, ocean carriers rent ship-to-shore cranes (which crane rental includes crane operators who are employees of the State of South Carolina) from SCPA at the Port pursuant to SCPA's applicable Marine Terminal Operator Schedule ("MTOS"). SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.

- l. With respect to paragraph 22, the ultimate decision of storing a container or break bulk cargo at the Port, and where that cargo will be stored within the Port, rests solely with SCPA. SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- m. With respect to paragraph 23, SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals. Prior to the joint venture, Marine Line Handlers or Charleston Port Services hired and supervised members of ILA Local 1422 for the line handling work.
- n. With respect to paragraph 24, CSC does not maintain complete control over any Terminal. SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- o. With respect to paragraph 25, CSC does not control the shipping and storage yards within the Terminals, nor does CSC control all movements of cargo throughout the Terminals. SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the

Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.

- p. With respect to paragraph 26, Ports America, Ceres, and SSA do not control any Terminal, even when loading or unloading a ship that is berthed within the Port. SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- q. With respect to paragraphs 29 and 30, for clarification purposes, SCPA subcontracts with Charleston Gate, LLC (“Gate Company”) to provide certain equipment interchange functions at HLT, NCT, and WWT for SCPA; said equipment interchange functions are subject to change at the SCPA’s sole and absolute discretion. The Gate Company invoices CSC for the equipment interchange services, and CSC, in turn, invoices those who received the equipment interchange services.
- r. With respect to paragraph 32, stevedores do not operate any of SCPA’s equipment at the Port. Only SCPA employees operate SCPA equipment at the Port, including cranes.
- s. With respect to paragraph 33, to my knowledge, the gang structure and guarantee rules have not changed, so work opportunities should be the same with CSC operating under an exclusive license to provide stevedoring services for containers at the Port.

- t. With respect to paragraph 43, upon information and belief, the reason for having an exclusive stevedore at the Port was to, in part, increase efficiency at the Port.

Observations on Declaration of Mr. McLaughlin

- 4. I have the following observations on the Declaration of Mr. McLaughlin:
 - a. With respect to paragraph 2, the three referenced SCPA cargo shipping terminals at the Port are container terminals. SCPA's other cargo shipping terminal at the Port is CST, which is a breakbulk/ro-ro terminal.
 - b. With respect to paragraph 6, each of the corporations referenced worked separately at the Port in their sole role as stevedores at the Port, not as marine terminal operators at the Port. CSC handles containerized cargo at the Port in its role as stevedore at the Port, not as a marine terminal operator at the Port.
 - c. With respect to paragraph 8, SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
 - d. With respect to paragraphs 12 through 17, upon information and belief, CSC receives the BAPLIE (the inbound vessel plan) from the previous port's stevedore, not the carrier. Upon entry through the gate, SCPA yard planners segregate export containers and assign yard locations based on port of discharge, weight, and size type.

- e. With respect to paragraphs 16-17, upon information and belief, stevedores in other ports along the East and Gulf coasts of the United States generally communicate with carriers regarding pre-stowage arrangements.
- f. With respect to paragraph 18, SCPA is the owner and sole marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- g. With respect to paragraph 19, CSC does not maintain complete control over any Terminal. SCPA is the sole owner and marine terminal operator of the Port and is solely responsible for the operation of the Port, including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.
- h. With respect to paragraph 21, SCPA own all warehouses on its Terminals. SCPA licenses certain office space and open areas located on or about its Terminals to CSC.
- i. With respect to paragraph 22, the said area is licensed to CSC, not leased. The designated area is used as a container freight station.
- j. With respect to paragraph 23, the said area is licensed to CSC, not leased.
- k. With respect to paragraph 24, stuffing and stripping by CSC is performed in certain areas that are licensed to CSC from SCPA.

- l. With respect to paragraph 25, CSC controls stuffing and stripping within the areas licensed to CSC from SPCA.
- m. With respect to paragraph 26, SCPA subcontracts with Charleston Gate, LLC (“Gate Company”) to provide certain equipment interchange functions at HLT, NCT, and WWT for SCPA; said equipment interchange functions are subject to change at the SCPA’s sole and absolute discretion. The Gate Company invoices CSC for the equipment interchange services and CSC in turn invoices those who received the equipment interchange services.
- n. With respect to paragraphs 27-29, prior to an over-the-road (“OTR”) truck driver arriving at SCPA Terminals, the trucking company's dispatcher accesses a SCPA system that interfaces with the SCPA TOS. The dispatcher creates a PIN for their OTR driver to deliver or receive containers. In a typical case, the OTR truck driver who is picking up the container arrives at the gate facility and enters their PIN number on the kiosk. The OTR driver then speaks with an ILA-represented clerk employed by the Gate Company at the gate. The ILA-represented clerk employed by the Gate Company validates the PIN number, and absent a specific problem, provide the OTR driver with a ticket. The ticket tells the OTR driver where to go in the yard to pick up the container and populates the SCPA TOS with information to reflect the driver’s arrival. A SCPA employee uses a yard machine to place the container on the chassis, and the driver drives the container to the gate.
- o. With respect to paragraph 30, SCPA is the owner and sole marine terminal operator of the Port and is solely responsible for the operation of the Port,

including the Terminals. CSC and the other stevedores do not have control over the Terminals, nor does SCPA share responsibility with CSC and the other stevedores over the Terminals.

- p. With respect to paragraph 31, SCPA granted CSC a license for CSC to provide vessel stevedore services and other related services approved in writing by SCPA for container operations on an exclusive basis at HLT, NCT, and WWT and any other marine terminal existing now or in the future at the Port in order to provide adequate, competitive, consistent, efficient, optimized, and safe stevedore services to the Port's customers in support of SCPA's business of fostering and stimulating commerce and the shipment of freight through South Carolina seaports.
- q. With respect to paragraph 36, said entities are allowed by SCPA to perform certain stevedore functions within the Port. The entities are not marine terminal operators at the Port.
- r. With respect to paragraph 39, Ceres provides stevedore services to cruise ships that call at and depart from the Port at UPT. SCPA is solely responsible for the operation of UPT.
- s. With respect to paragraph 40, Ports America loads and unloads cars and other automobiles to and from ocean vessels and the point of rest at CST.
- t. With respect to paragraph 41, SCPA has licensed to Ports of America space at CST where Ports of America stores certain equipment. The space is not used to store vehicles that are shipped through CST.

Information Pertinent to My Observations

5. SCPA has sole responsibility for terminal operations at the Terminals. CSC works at the sole direction of SCPA regarding yard operations.

6. SCPA is solely responsible for developing the yard plan of where to store containers, which it then provides to CSC. Neither CSC nor ILA-represented clerks employed by CSC are responsible for the yard plan.

7. Prior to the arrival of a vessel with inbound cargo, SCPA decides what berth the vessel will occupy. SCPA determines where inbound containers will be placed in the yard. For outbound cargo, SCPA decides where in the yard the outbound containers are to be placed in the yard.

8. SCPA employees determine where containers are stacked in the yard. SCPA employees operate SCPA yard machines.

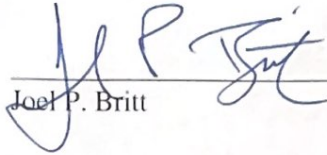
9. CSC's role is limited to the stevedoring operations.

10. Depending on the customer, "stripping and stuffing" of containers on Terminals are performed by both SCPA employees and stevedores.

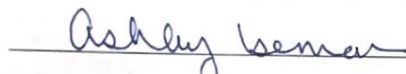
11. My decision not to reference or provide an observation as to any paragraph or assertion in this Declaration is not an indication that I agree with the paragraph or assertion or believe the paragraph or assertion is accurate or correct.

I swear under penalty of perjury of the laws of the United States of America that the foregoing is true and correct to the best of my knowledge, information and belief.

Further Affiant sayeth not.


Joel P. Britt

SWORN TO AND SUBSCRIBED BEFORE ME
THIS 9th DAY OF JUNE 2023.


Notary Public for the State of South Carolina

My Commission Expires 7/10/2024

[SEAL]

